SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	35

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			M6700426Q1000	

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	Erica Vaughn	904-696-5195	02 Feb 2026 12:00 PM

9. ISSUED BY CODE M67004

COMMANDER
MARCORLOGCOM, 814 RADFORD BLVD STE 20313
ALBANY, GA 31704-0313
UNITED STATES
Erica Vaughn, Email: erica.vaughn@usmc.mil Telephone: 904-696-5195

10. THIS ACQUISITION IS
- ☐ UNRESTRICTED OR
- ☒ SET ASIDE: 100 % FOR:
  - ☐ SMALL BUSINESS
  - ☐ HUBZONE SMALL BUSINESS
  - ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
  - ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
  - ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
  - ☒ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 541611

SIZE STANDARD: USD 24,500,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO CODE

See Continuation

16. ADMINISTERED BY CODE

17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE

TELEPHONE NUMBER

17b. ☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY CODE

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Continuation *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA
See Continuation

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☒ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ____ OFFER DATED . ____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: See Continuat

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*
SANDERS.STANLEY.G.JR.1068506065 Digitally signed by SANDERS.STANLEY.G.JR.1068506065 Date: 2026.01.22 15:36:35 -05'00'

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		STANLEY G SANDERS JR	1/22/26

AUTHORIZED FOR LOCAL REPRODUCTION
PREVIOUS EDITION IS NOT USABLE

STANDARD FORM 1449 (REV. 11/2021)
Prescribed by GSA - FAR (48 CFR) 53.212

Created On:
22 Jan 2026, 19:57 PM Greenwich Mean Time

Solicitation/Contract Form Continuation

Acquisition Support Services

0001

Product Service Code: R707

0002

Product Service Code: R707

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	The Contractor shall provide Acquisition Support Services in accordance with the Performance Work Statement and terms and conditions of the contract. CONTRACTOR AUTHORIZED TO SUBMIT MULTIPLE INVOICES. Period of Performance: 24 February 2026 to 23 February 2027. FOB: Destination. Funds Type: O&M Pricing Arrangement: Firm Fixed Price	12	Months		
0002	COST CLIN 0002 is for authorized Reimbursable Travel and ODCs. Authorization from Contracting Officer is required prior to incurring cost. Only allowable cost under the CLIN 0002 will be reimbursed. 4C Solutions Inc is required to submit receipts for travel expenses and ODCs. CLIN 0002 shall be billed separately from CLIN 0001 (Labor). ODCs shall be used to reimburse for insurance, training as required and personal protective equipment. CONTRACTOR AUTHORIZED TO SUBMIT MULTIPLE INVOICES. Period of Performance: 24 February 2026 to 23 February 2027. FOB: Destination. Fund type: O&M Pricing Arrangement: Cost No Fee	1	Lot		

Continuation of Description

Performance Work Statement

Acquisition Support Services for the Contracts Office

Marine Corps Support Facility Blount Island Command (MCSF-BICmd)

5880 Channel View Boulevard, Jacksonville, FL 32226

1.0 PURPOSE

1.1 Environment: Marine Corps Support Facility - Blount Island (MCSF-BI) and Blount Island Command (BICmd) are located in the middle of the St. Johns River, seven miles west of the sea buoy adjacent to the Naval Station (NS) Mayport, and twelve miles by way of the river northeast of downtown Jacksonville, Florida. Naval Air Station (NAS) Jacksonville is located south of downtown Jacksonville and is twenty-six miles from Blount Island. Cecil Field is to the west of BICmd and Naval Submarine Base Kings Bay, Georgia is 35 miles to the north. As the Commandant of the Marine Corps' Executive Agent for Marine Corps Pre-positioning Programs, Blount Island Command plans, coordinates, and executes the logistics efforts in support of Maritime Prepositioning Ships (MPS) and the Norway Geo-Prepositioning Programs. Blount Island Command's execution of its mission focuses on attainment, maintenance, and sustainment of all MPS and Norway requirements. Blount Island Command also provides technical assistance to Marine Expeditionary Force Commanders for all aspects of prepositioning planning and deployment.

1.2 Objective: The objective of this contract is to obtain mid-level contract/acquisition support services for Blount Island Command. Dedicated contract/acquisition support services are required for the Contracts Office.

1.3 Conformance: The services performed shall conform to this contract and the resulting work products shall conform to all applicable Federal, DoD, Navy, Marine Corps, state, and local regulations and policies including, but not limited to, the Federal Acquisition Regulation (FAR), the Department of Defense FAR Supplement (DFARS), the Navy Marine Corps Acquisition Regulation (NMCAR), Marine Corps Acquisition Policy and Procedures, and other DoD policy and supplemental regulations as appropriate.

2.0 GENERAL REQUIREMENTS - ACQUISITION SUPPORT SERVICES

2.1 Operating Hours and Government Closures

2.1.1 The normal work hours for all contractor employees shall be 0730 - 1600 hours with a 30-minute meal period, Monday through Friday or as otherwise approved by the Contracting Officer.

2.1.2 Situational telecommuting will be authorized in advance by the Contracting Officer.

2.1.3 Unless required under the terms of the contract or authorized by the Contracting Officer, the contractor shall not work at any other Government facility, nor should any deliveries under this contract be made to any Government facility, on any of the following holidays:

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
Washington's Birthday	Veteran's Day
Memorial Day	Thanksgiving Day
Juneteenth National Independence Day	Christmas Day
Independence Day	

When a holiday falls on a Sunday, the observance will occur on the following Monday. When a holiday falls on a Saturday, the observance will occur on the preceding Friday. The amounts in schedule of the contract include an allowance for holidays to be observed by the contractor's employees.

2.2 Program Management: The Contractor shall provide the necessary management and

personnel, and equipment/ supplies (not otherwise provided by the Government, i.e. laptops, office supplies, office space/furniture), required to perform the support services described in this PWS. This includes the planning, coordination, and surveillance of the activities necessary to ensure disciplined work performance and timely resources application to accomplish all tasking under the contract. The Contractor shall be responsible for maintaining communication with the Contracting Officer (KO) and to immediately notify both the KO of any problems that would prevent timely performance of this contract. The Contractor is responsible for and required to implement, and maintain management control systems necessary to plan, organize, direct, and control all activities under this contract.

2.3 Contractor's Workforce Requirements

2.3.1 The contractor's workforce shall be professional in demeanor, responsiveness, appearance and deportment. The contractor personnel may be required to interface with senior Government and industry officials in a supporting role to the BICmd contracting personnel. Contractor personnel shall have excellent written and oral communications skills to provide clear concise communication and documentation.

2.3.2 Contractor personnel shall be proficient in the use of the Microsoft suite of applications including Word, Excel, PowerPoint, Outlook, and Project as well as with Adobe Acrobat. Not later than sixty (60) days from starting work at BICmd, contractor personnel shall be proficient in the use and application of the primary contract-writing tool for DoD known as electronic Procurement System (ePS). Contractor employees do not have access to Wide Area Workflow, Defense Agencies Initiative (DAI) , or the NAVSUP Workflow for DD2579 processing; information required from these systems must be requested through government personnel. Contractor employees do not have access to the System for Award Management (SAM) for the purposes of publicizing contract actions; contractor employees must coordinate with government personnel for publicizing contract actions in a timely manner.

2.3.3 All contractor personnel assigned under this contract shall have suitable background and experience in planning, pre-award, and post-award activities for varied requirements; and shall be able to produce contracts, modifications, and associated supporting documents in accordance with the referenced acquisition regulations, policies, and procedures with minimal rework.

2.3.4 All contractor personnel assigned under this contract shall have a comprehensive understanding of current Federal and DoD acquisition regulations, supplements, policies and procedures; to include the Navy Marine Corps Acquisition Regulation Supplement (NMCARS) and Marine Corps Acquisition Policy and Procedures (MAPP) . The Contractor shall also ensure that all of their employees are properly trained and are qualified to perform tasks assigned under this PWS.

2.3.5 Contractor Travel. Contractor may be required to travel within CONUS during the performance of this contract to attend meetings, conferences, and training. The Contractor may be required to travel to off-site locations. Travel reimbursements will be in accordance with the regulatory implementation of Public Law 99-234 and FAR 31.2. All travel requires Contracting Officer prior approval/authorization via the COR. Contractor must provide actual invoices when invoicing WAWF as supporting documentation. Contractor must ensure that in every instance they will seek the most economical cost for travel or what is in the best interest of the Government. Travel arrangements made utilizing other than the lowest fare and/or coach class seating is not authorized without ample justification and prior written approval from the KO.

2.3.6 All personnel performing under this contract are considered essential to the work being performed under this contract. Before selecting, removing, replacing, or diverting any of the listed or specified personnel, the Contractor must: (1) Notify the Contracting Officer reasonably in advance; (2) Submit justification (including proposed substitutions) in sufficient detail to permit evaluation of the impact on this contract; and (3) Obtain the Contracting Officer's written approval. Notwithstanding the foregoing, if the Contractor deems immediate removal or suspension of any member of its team is necessary to fulfill its obligation to maintain satisfactory standards of employee competency, conduct, and integrity, the Contractor may remove or suspend such person at once, although the Contractor must notify Contracting Officer prior to or concurrently with such action.

2.3.7 Responsiveness and Quality. An integral part of successful performance under this contract is not only the production of quality products described in paragraph 3.0, but also the responsiveness of contractor personnel in their day-to-day oversight and administration of assigned contracts. While an end product or deliverable is vital to successful performance, day- to-day oversight also includes interaction with and responsiveness to various requiring activities. Accordingly, the contractor is required to proactively maintain assigned contract actions and be responsive to all entities with business dealings related to the assigned contracts. Contractor employees shall provide a weekly status report of all actions taken in support of tasks and deliverables described herein. For any work that was determined by the Government to be late or incomplete or unsatisfactory, the contractor shall take necessary action to ensure that future performance conforms to contract requirements.

2.4 Workload Management

2.4.1 This contract is for support services that are routinely performed at the BICmd Government

contracting office site. The contractor shall ensure its personnel accomplish the assigned tasks on time while maintaining quality and responsiveness.

2.4.2 The contractor shall provide the Contracting Officer a monthly work schedule for staff

assigned to the contract which identifies planned leave or other scheduled absences. The contractor shall ensure that staff assigned to the contract report unscheduled absences to the contractor, who will in turn report unscheduled absences to the government.

2.4.3 Newly assigned contractor personnel must obtain and maintain both an installation and

building pass for work on BICmd as well as a Common Access Card (CAC) to access all IT systems. Contractor personnel must also read and familiarize themselves with all contracting and BICmd specific mission statements and charters, organizational structures, contracting operating Instructions, office operating instructions, Standard Operating Procedures (SOPs) and policy within ten (10) working days of reporting for work at the Contracts Office.

2.4.4 Contractor employees shall be responsible to ensure that the transition of contract file

shall be executed with minimal disruption to workload execution and ensure that a complete and comprehensive turnover of documentation is accomplished. The contractor shall make every effort to retain high performing personnel with little if any turnover as turnover may negatively impact contractor performance.

2.5 Data Integrity. The contractor shall be responsible for effectively using ePS,

Federal Procurement Data System (FPDS) within ePS and preparing information for submission to other procurement applications such as SAM and NAVSUP Workflow for DD2579 submission. The contractor shall ensure that contract data is entered accurately into ePS and FPDS, and conforms to the contracting office's local implementation and operating standards.

2.6 Disclosure and avoidance of inherently governmental functions. The contractor shall not perform or give the appearance of performing inherently governmental functions as described in FAR Parts 2 and 7, and all applicable DoD policy. All contractor personnel shall identify themselves and contractor support personnel in all forms of communications with all entities with whom the BICmd and Contracts Office has business dealings. The contractor shall:

2.6.1 Answer all telephone calls and have a personalized voice message with an introductory statement that includes the fact that the person is a contractor support personnel.

2.6.2 Include a title block in all emails that states the fact that the person is a contractor support personnel. For example: Jane Roe, Contract Support Services, XYZ Corporation, Contractor Support to Blount Island Command.

2.6.3 Ensure all those with whom the person interacts in any face-to-face dealings while supporting BICmd understands that the person is contractor support personnel.

3.0 TASKS AND DELIVERABLES

3.1 "End to End" Contract Formulation and Management Support Services, as described below, include both Pre-Award and Post-Award support. All services shall be accomplished in accordance with the Federal Acquisition Regulation (FAR), Department of Defense Acquisition Regulation (DFAR), Navy/Marine Corp Acquisition Regulation (NMCAR) and the Marine Corps Acquisition Policies and Procedures (MAPP).

3.1.1 Pre-Award Support

3.1.1.1 Requirements Documentation Support. Coordinates and facilitates submission of all requirements documents, to include the development of the requirements statements and necessary justifications and approvals. Identifies a Plan of Action and associated Milestones to ensure execution of the requirement to meet delivery or performance requirements.

3.1.1.2 Acquisition Strategy. Conducts market research and facilitates acquisition planning, to include analysis of the competitive environment, historical acquisitions, availability of commercial sources, determine competition. Publicizes contract actions as approved by the Contracting Officer. Provide assistance in researching existing Government-wide contracts for available products and services, evaluating different acquisition approaches, researching available suppliers, and conducting market research. Appropriately documents the Acquisition Plan, identifying all participants.

3.1.1.3 Pre-Award Documentation and Source Selection. Completes all pre-award documentation for solicitation and contract award. Ensures that the award recommendation is in compliance with stated solicitation selection criteria. Ensures files prepared for the pre-award decisions are complete, neat, and organized in accordance with the contracting office's policy, and files are properly organized to facilitate post-award reviews and administration.

3.1.1.4 Solicitations. Develops draft acquisition strategies, source selection plans, Request for Quotes (RFQs), Request for Proposals (RFPs), and/or Combined Synopsis/Solicitations for Contracting Officer approval. Distributes solicitation by electronic posting, email, fax or mail upon approval and release by the Contracting Officer.

3.1.1.5. Proposal/Bid Analysis. Prepares all documentation associated with proposal/bid analysis in accordance with the evaluation criteria identified in the solicitation. Prepares a recommendation for contract award with supporting analysis to the Contracting Officer for review prior to preparing contract award documents.

3.1.2 Post-Award Support

3.1.2.1. Assist in preparing final contract award documents for task and deliver orders and stand-alone contracts, and COR designation letters. Obtain legal concurrence for contract award and all subsequent actions as required. Distribute contract to appropriate parties. Prepare draft award announcements for electronic posting and draft Congressional Notifications in accordance with FAR and DFARS requirements and local guidance

3.1.2.2 Assists in preparing appropriate documentation for contract modifications, to include cost/price analysis to support negotiations and modification execution. Prepares Pre-Negotiation, Post-Negotiation and Business Clearance Memorandum as required to document negotiations. Creates and maintains a contract value spreadsheet which identifies the contract award and all subsequent modifications by CLIN/SLIN and associated accounting information.

3.1.2.3 Conducts quarterly unliquidated obligation (ULO) reviews of all contracts. Reviews contracts on a recurring basis to ensure sufficient funding. Creates and maintains up-to-date spreadsheets for contract obligations and disbursements by CLIN/SLIN and invoice number/dates of services.

3.1.2.4 Performs all functions and documentation for closeout of contracts, fixed-price and complex cost contracts. Also, the contractor will review invoices retrieved from WAWF (including tracking fund status management), coordinate with requiring activity personnel for acknowledgement of receipt and acceptance of contract deliverables when necessary, and recommend to the Contracting Officer whether payment should be authorized.

3.1.2.5 Maintains complete and organized contract files. Retrieves contract files immediately upon request; prepare contract files in accordance with established procedures.

3.2 Weekly Workload Reports

Contractor employees shall provide a weekly workload report, via the contractor, which includes but not limited to the following:

1. Listing of all completed and work-in-progress assignments, including current status.

2. Discussion of progress and identification of rework identified by the Contracting Officer relative to the overall work quality

3. Discussion of problems encountered or anticipated during the reporting period and actions taken, and the results of the actions; issues; and concerns

3.3 Monthly Reports

The monthly report shall be submitted electronically either as a word .docx file or a .PDF file to the Contracting Officer within five (5) calendar days following the end of each month

1. Overall status of work-in-progress and work completed.

2. Overall status of the quality of services performed.

3. Invoicing information - to include the contract price, invoiced costs for period submitted, amount invoiced to date, amount remaining, and decrements taken from the billing price, and any adjustments made.

4. Scheduling of Employees - reporting all absences that include vacation, sick leave, turnovers, gaps, and replacements.

3.4 Performance Management and Quality Assurance

3.4.1 Quality/Requirements Summary: In the following table, the contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable quality levels of service required for the significant performance requirements of this task order. These thresholds are critical to mission success. The contractor shall ensure its performance under the subject contract meets the quality standards identified in the Performance Summary Requirements and acceptance criteria specified in the Performance Work Statement. The contractor shall perform monitoring and evaluation of its employee's contract actions and interfacing with the Contracting Officer, Contract Support Management Office staff, and requiring activity personnel.

Task Performance Objectives	**Performance Standard**	**Acceptable Quality Level**	**Performance Measurement**	**Method of Surveillance**
PWS 2.3 Contractor Workforce Requirements	The contractor's workforce shall be professional in demeanor, responsiveness, appearance and deportment. Contractor personnel shall have excellent written and oral communications skills sufficient to provide clear concise communication and documentation.	The contractor's staff has sufficient experience, training and expertise in the Federal acquisition and assistance processes to: proactively interact with clients and contractors; ensure that COs are informed of developments with assigned actions; and prepare documentation that fully supports assigned actions consistent with regulation and local policy.	Review of work products, and communications with contract organization and the BICmd staff.	Review of work products by the Contracting Officer not less than once a month and feedback from appropriate Government sources.
PWS 2.4 Responsiveness	The contractor is responsive and proactive in the day-to-day oversight and administration of assigned portfolios. This	The contractor is required respond to phone messages and emails within 24 hours of receipt, if applicable; contractor's work products, i.e. modifications, and supporting memoranda, are timely, complete, and accurate. 90% or more of contractual documents are error free.	Review of work products, and communications with contract organization and the BICmd staff. Contractor	Random review by the Contracting Officer no less than

and Quality	includes interaction with requiring activities' offices, the BICmd management, and other contractors.	To meet this standard, contractual documents should conform to current regulation, the contracting organization's operating procedures and instructions, as well as guidance from the Contracting Officer on the desired content and format for the documents. Minor editorial and typographical errors should be few.	employees shall provide a weekly status report of all actions taken in support of tasks and deliverables described herein.	once a month and feedback from appropriate Government sources
PWS 2.5 Workload Management	The contractor ensures that sufficient staff is available on-site at the Contract Support Management Office at all times during core business hours to support assigned programs. The contractor shall ensure its personnel accomplish the assigned tasks within agreed upon schedules, and at an acceptable level of quality.	Ensure that sufficient staff is available during core business hours to proactively interact with clients and contractors by initiating or attending meetings and teleconferences; ensure that the Contracting Officer is informed of developments with assigned actions; and perform a comprehensive turnover as the contractor's staff are reassigned with the prospective workload assignee with no discernible reduction in responsiveness.	Review of work products, and communications with contract organization and the BICmd staff.	Random review by the Contracting Officer no less than once a month and feedback from appropriate Government sources
PWS 2.6 Data Integrity	Contract data is entered accurately in ePS, AMS, and FPDS, and conforms to BICmd's local implementation and operating standards. The contractor reviews invoice documents to ensure that invoices conform to contract requirements, acceptance has been documented by government personnel and invoices are approved.	At least 95% of the data records are complete, accurate, and conform to the Contract Support Management Office's operating procedures. All input and document creations are entered correctly; are appropriate for the contract action; are thorough; are formatted appropriately and reflect Government guidance. Recommendations for acceptance/rejection are being made to the Contracting Officer in a timely manner and in accordance with the Contract Support Management Office's standard operating procedures and Operating Instructions, as well as any guidance from the Contracting Officer approving the action.	Review of work products, and various reports will be used to assess data accuracy and integrity.	Random review by the Contracting Officer no less than once a month and feedback from appropriate Government sources.
PWS 3.1.1 Pre-Award	Requirements Documentation Support Acquisition Strategy Pre-Award Documentation and Source Selection	Coordinates and facilitates submission of all requirements documents Appropriately documents the Acquisition Plan Completes all pre-award documentation for solicitation and contract award (draft acquisition strategies, source selection plans, Request for Quotes (RFQs), Request for Proposals (RFPs), and/or Combined Synopsis/Solicitations for Contracting Officer approval)	Review of work products, and various reports will be used to assess data accuracy and integrity	Random review by the Contracting Officer no less than once a month and feedback from appropriate Government sources.
	Assist in preparing final contract award documents Assists in preparing appropriate documentation for	Obtain legal concurrence for contract award - Prepare draft award announcements for electronic posting - Document distribution of contract to appropriate parties		Random review by the

PWS 3.1.2 Post Award	contract modifications Conducts quarterly (ULOs) Closeout of contracts Maintains contract files	Cost/price analysis support. Prepares Pre-Negotiation, Post-Negotiation and Business Clearance Memorandum - Track contract value for all subsequent modifications by CLIN Creates and maintains up-to-date spreadsheets for contract obligations Performs all functions and documentation for contract close- outs Prepares contract files in accordance with established procedures	Review of work products, and various reports will be used to assess data accuracy and integrity.	Contracting Officer no less than once a month and feedback from appropriate Government sources.
PWS 3.2 Workload Management Report	Weekly Workload Status reports accurately reflect status of all assignments in process or completed during the period, to include metrics regarding acquisition milestones as approved by the Contracting Officer.	Reports are comprehensive and fully address the requirements of the PWS. Reports are submitted in accordance with the time period specified.	Weekly, by close of business Friday.	100% review by the Contracting Officer.

3.3.2 Contractor Quality Control. The contractor will solicit customer feedback from the Contracting Officer to better gauge the overall quality of work. The Contracting Officer will review the contractor's work-in-progress in support of Pre-Award and Post-Award support services and will provide feedback to the contractor. For staff members exhibiting difficulties in producing quality work, a significantly higher level of review will be applied in order to ensure that the services provided to the Government conform to contract standards.

3.4 Government Furnished Materials and Facilities

3.4.1 Information - The Government will provide information, material and forms unique to the Government for supporting the task. All Government unique information related to this requirement, which is necessary for Contractor performance, will be made available to the Contractor. The Contracting Officer will be the point of contact for identification of any required information to be supplied by the Government.

3.5 Organizational Conflicts of Interest: Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

a. Purpose: The primary purpose of this clause is to aid in ensuring that the:

1. Contractor's objectivity and judgement are not biased because of its present, or currently planned interests (financial, contractual, organizational, or otherwise) which relate to work under this contract;

2. Contractor does not obtain any unfair competitive advantage by virtue of its access to non-public Government information regarding the Government's program plans and actual or anticipated resources; and

3. Contractor does not obtain any unfair competitive advantage by virtue of its access to proprietary information belonging to others.

b. Scope: The restrictions described herein shall apply to performance or participation by the Contractor and any of its affiliates or their successors in interest (hereinafter collectively referred to as "Contractor") in the activities covered by this clause as prime contractor, subcontractor, co-sponsor, joint venture, consultant, or in any similar capacity. The term "proprietary information" for the purposes of this clause is any information considered to be so valuable by its owner that it is held in secret by them and their licensees. Information furnished voluntarily by the owner without limitations on its use, or which is available without restrictions from other sources, is not considered proprietary.

1. Access To and Use of Government Information: If the Contractor, in the performance of this contract, obtains access to information such as plans, policies, reports, studies, financial plans, or data which has not been released or otherwise made available to the public, the Contractor agrees that without prior written approval of the Contracting Officer, it shall not: (a) use such information for any private purpose unless the information has been released or otherwise made available to the public, (b) compete for work based on such information after the completion of this contract, or until such information is released or otherwise made available to the public, whichever occurs first,(c) submit an unsolicited proposal to the Government which is based on such information after such information is released or otherwise made available to the public, or (d) release such information unless such information has previously been released or otherwise made available to the public by the Government.

2. Access To and Protection of Propriety Information: The Contractor agrees that, to the extent it receives or is given access to proprietary data, trade secrets, or other confidential or privileged technical, business, or financial information (hereinafter referred to as "proprietary data") under this contract, it shall treat such information in accordance with any restrictions imposed on such information. The Contractor further agrees to enter into a written agreement for the protection of the proprietary data of others and to exercise diligent effort to protect such proprietary data from unauthorized use or disclosure. In addition, the Contractor shall obtain from each employee who has access to proprietary data under this contract, a written agreement which shall in substance provide that such employee shall not, during his/her employment by the Contractor or thereafter, disclose to others or use for their benefit, proprietary data received in connection with the work under this contract. The Contractor will educate its employees regarding the philosophy of Part 9.505-4 of the Federal Acquisition Regulation so that they will not use or disclose proprietary information or data generated or acquired in the performance of this contract except as provided herein.

c. Subcontracts: The Contractor shall include this or substantially the same clause, including this paragraph, in consulting agreements and subcontracts of all tiers. The terms "Contract," "Contractor," and "Contracting Officer," will be appropriately modified to preserve the Government's rights.

d. Disclosures: If the Contractor discovers an organizational conflict of interest or potential conflict of interest as contemplated by FAR 9.5 before or after award, a prompt and full disclosure shall immediately be made in writing (before award if applicable) to the Contracting Officer. This disclosure shall be provided via an OCI Analysis/Disclosure Form, and shall include a description of the action the Contractor has taken or proposes to take in order to avoid or mitigate such conflicts.

e. Remedies and Waiver: For breach of any of the above restrictions or for non-disclosure or misrepresentation of any relevant facts required to be disclosed concerning this contract, the Government may terminate this contract for default, disqualify the Contractor for award or for subsequent related contractual efforts, and pursue such other remedies as may be permitted by law or the contract. If, however, in compliance with this clause, the Contractor discovers and promptly reports an organizational conflict of interest (or the potential thereof) subsequent to contract award, the Contracting Officer may terminate this contract for the convenience of the Government if such termination is deemed to be in the best interest of the Government.

f. Modifications: Prior to contract modification, when the Performance Work Statement is changed to add new work or the period of performance is significantly increased, the Contracting Officer may require the Contractor to submit either an organizational conflict of interest disclosure or an update of the previously submitted disclosure or representation.

3.6 Personal Conflicts of Interest

1. The term "personal conflict of interest" means that a contractor employee assigned to the contract has interests which (i) may diminish his/her capacity to give impartial, technically sound, objective assistance and advice in performing this contract, (ii) may otherwise result in a biased work product under this contract, or (iii) may result in an unfair competitive advantage.

2. A contractor employee shall not participate (i.e. recommend, influence, or decide) in any particular matters:

a) that will have a direct and predictable effect on the financial interests of that employee, his/her spouse or minor child, or organization in which he/she serves as officer, director, trustee, general partner or employee;

b) that will have a direct and predictable effect on the financial interests of or any person or organization with whom he/she is negotiating or has an arrangement concerning prospective employment

c) may otherwise cause a reasonable person to question his/her impartiality.

3. If after award, the contractor discovers an employee's financial conflict of interest, with respect to this contract, it shall make an immediate and full disclosure in writing to the Contracting Officer. The disclosure shall include identification of the conflict, the manner in which it arose, and a description of the action the Contractor has taken or proposes to take to avoid, eliminate or neutralize the conflict. The Government may, however, terminate the contract.

4. In the event that the Contractor was aware of an employee's financial conflict of interest prior to award of this contract and did not disclose the conflict to the Contracting Officer or becomes aware of an employee's financial conflict of interest after award of this contract and does not disclose the conflict of interest within ten (10) working days of becoming aware of such conflict, the Government may terminate the contract and the contractor shall not be entitled to reimbursement of any cost incurred in performing this contract or payment of any fee there under. Further, such costs shall not be allocable or chargeable, directly or indirectly, to any other contract with the Government.

5. The rights and remedies of the Government provided in this clause shall not be exclusive and are in addition to any other rights and remedies of the Government provided by law or under this contract.

3.7 Security Requirements: The resultant contractor employee will be required to sign a non-disclosure statement before beginning work as there may be access to PII or Procurement Sensitive Information.

3.7.1 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

3.7.2 Security Procedures: The contractor shall adhere to and participate in the execution of all security instructions, Command Orders, and directives of Blount Island Command.

3.7.3 CONUS Anti-Terrorism (AT) Considerations: The contractor shall comply with monthly scheduled Random Access measures (RAM). These RAM, at a minimum, shall consist of the random implementation of higher Force Protection Conditions (FPCONS) measures in consideration of the local terrorist capabilities. Random use of other physical security measures will be used to supplement FPCON measures. The contractor shall comply with all requirements associated with FPCON measures.

3.7.4 Background Checks for Contractors Performing Services On-Site: The contractor shall perform background checks and make suitability determinations for all employees performing services on-site. The contractor and its subcontractors shall complete background checks and make suitability determinations on all employees before beginning performance on site. The contractor shall notify the Contracting Officer that the background checks and suitability determinations have been completed for all affected individuals. Contractor personnel shall also be subject to additional background checks by the Government before and during their performance at Blount Island Command. Contractors shall insert terms that conform substantially to the language herein for background checks in all subcontracts under the contract.

3.7.4.1 Compliance with the requirements for performing a background check and making a suitability determination shall not be construed as providing the contractor employee clearance to have access to classified information or confidential business information.

3.7.4.2 Removal of Contractor Employees: Removal of contractor employees will be made by the Contracting Officer for any employee whose continued employment under this contract is inconsistent with the interest of military security. The Contracting Officer may require the immediate removal of any contractor employee that is objectionable, incompetent, or endanger persons (including themselves) or property, or whose physical or mental condition is such that it would impair the employee's ability to satisfactorily perform the work. Notification for removal will be in writing. However, notification may be made by telephone, and later confirmed in writing if time and circumstances warrant. The contractor shall take immediate action to replace any dismissed employee. Personnel changes, regardless of cause, will not reduce the contractor's obligation to perform work in accordance with the contract terms and conditions.

3.7.4.3 Key Control: As applicable, the Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the Contracting Officer.

3.7.4.4 In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Contracting Officer, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the monthly payment due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due the Contractor.

3.7.4.5 The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Contracting Officer.

3.7.5 Lock Combinations: The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's Quality Control Plan.

3.7.6 Base Access: In order to gain access to the Installation, the contractor shall comply with requirements for documentation and criminal background check per CmdO 5560.1.

3.7.6.1 The Contractor shall obtain appropriate Blount Island badges, vehicle passes and vehicle registration/decals prior to entering the facility. The Blount Island Police Department pass & ID Office issues badges, vehicle passes and decals based upon the duration of the contract.

3.7.7 Common Access Cards (CACs): The CAC is a DOD-mandated program affecting Military, DOD Civilians and eligible contractors. In addition to its use as an ID card, the CAC is expected to provide a variety of functional capabilities such as access to buildings and facilities, and secure access to Government computer systems and networks.

3.7.7.1 The Contractor shall comply with all security requirements enforced by the applicable sponsoring Government agency. Contractor personnel shall have as a minimum a favorable National Agency Check with Inquiries completed before being permitted access to Government automated information technology systems

3.7.8 Post-Award Conference/Period Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The Contracting Officer, Contracting Officer's Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

3.7.9 Contracting Officer Representative (COR): The COR monitors all technical aspects of the contract and assists in contract administration The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract: perform inspections necessary in connection with contract performance: maintain written and oral communications with the Contractor concerning technical aspects of the contract: issue written interpretations of technical requirements, including Government drawings, designs, specifications: monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government

furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting contract.

3.7.10 Identification of Contractor Employees: In accordance with DFARS 211.106, all contract personnel attending meetings, answering Government telephones, and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed. All contractor personnel working at Blount Island will be required to obtain and wear badges in the performance of this service.

3.8 Safety Requirements: Detailed in the attached Marine Corps Support Facility - Blount Island, Blount Island Command Service Agreement

3.9 Service Contract Reporting (SCR): Services Contract Reporting (SCR) requirements apply to this contract. The Contractor shall report required SCR data fields using the SCR section of the System for Award Management (SAM) at the following web address: https://sam.gov/SAM/.

3.10 Mission Essential Contract Requirements: In the event that the services provided hereunder are determined to be mission essential, the Contractor shall comply with DFARS 252.237-7023 and 252.237-7024.

3.11 Personnel and Information Security:

3.11.1 Governing Security Directives and Policies: The Contractor shall comply with DoD Directive 5220.22-M (National Industrial Security Program Operating Manual (NISPOM)), SECNAV M- 5510.36 (Department of the Navy Information Security Program), SECNAVINST 5510.30C (Department of the Navy Personnel Security Program), MCO 5510.18B (United States Marine Corps Information and Personnel Security Program), and adhere to all Blount Island Command (BICmd) and Marine Corps Support Facility Blount Island (MCSF-BI) security instructions, orders, policies, and directives.

3.11.2 General Personnel Security Guidelines: This contract does not require the contractor to possess a Secret Facility Security Clearance; therefore, DD Form 254 (Contract Security Classification Specification) in not required. Minimal security requirements, as outlined below, will satisfy basic Common Access Card (CAC) and IT systems access requirements. Should the need arise to obtain a Secret Facility Security Clearance, the contractor will be required to gain and maintain a favorably adjudicated T3 investigation in accordance with MCO 5510.18B. It is the contractor's responsibility for submission of security investigations for the performance of their work. The government will have and exercise full and complete control over granting, denying, withholding, or terminating security clearances for the Contractor employees.

3.11.3 CAC Requirements: The CAC is a DoD-mandated program affecting military, DoD civilians, and eligible contractors. In addition to its use as an ID card, the CAC provides a variety of functional capabilities such as:

- Secure access to DoD computers, networks, and systems
- Installation entry control or physical access to facilities and buildings.

In order to meet CAC eligibility criteria, contractors must obtain and maintain a favorably adjudicated Personnel Security Investigation (PSI). Prior to authorizing a CAC, contractor's Joint Personnel Adjudication System (JPAS) record must indicate a completed and favorably adjudicated PSI or (at a minimum) that a PSI is submitted and accepted at U.S. Office of Management (OPM) with favorable fingerprints. The minimum acceptable investigation is a favorable T1. If the Contractor's open investigation closes and is not favorably adjudicated, the Contractor's CAC will be confiscated.

The Contractor shall return all CACs from terminated employees to the Government Trusted Agent Security Manager (TASM).

Blount Island Command Personnel and Information Security Points of Contact:

Chief Petty Officer Willie Newsom

Security Manager

Commercial: 904-696-5015

Email: Willie.Newsom@usmc.mil

Derrick Williams

Assistant Security Manager

Commercial: 904-696-5056

Email: Derrick.Williams2@usmc.mil

3.11.4 Contractor/Subcontractor Access to MCSF-BI: In order to gain access to the installation, the contractor will comply with requirements outlined in CmdO 5560.1 (Entry Control Procedures) for MCSF-BI badges and vehicle registration. The Contractor shall immediately remove any employee that endangers national security.

3.11.5 CONUS Anti-Terrorism (AT) Considerations: The Contractor shall comply with monthly Random Anti-Terrorism Measures (RAM) as directed by CmdO 3302.1, Marine Corps Support Facility Blount Island Mission Assurance Plan. These RAM, at a minimum, will consist of the random implementation of higher Force Protection Condition (FPCON) measures in consideration of the local terrorist capabilities. Random use of other physical security measures will be used to supplement FPCON measures.

FPCON describes the progressive level of countermeasures in response to a terrorist threat to U.S. military facilities and personnel. FPCON measures are used to deter terrorist attacks on DoD facilities and personnel by:

- Varying routines

- Being sensitive to changes in the security atmosphere around DoD facilities and personnel.

The five FPCON levels are defined as follows:

- Normal: This condition applies when a general global threat of possible terrorist activity exist and warrants a routine security posture

- Alpha: This condition applies when a general threat of possible terrorist activity against personnel and facilities, the nature, and extent of which are unpredictable

- Bravo: This condition applies when an increased and more predictable threat of terrorist activity exists

- Charlie: This condition applies when an incident occurs or intelligence is received indicating some form of terrorist action or targeting against personnel or facilities is likely

- Delta: This condition applies in the immediate area where a terrorist attack has occurred or when intelligence has been received that a terrorist action against a specific location or person is imminent.

Personnel may be asked to leave the base or not be allowed to enter the base when in elevated FPCONSs.

During increased FPCONs, the Contractor and its equipment are subject to search via scheduled spot check or RAMS at any time. Spot checks may also be conducted as RAMs.

PART 4

4.1 Definitions

Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

Contracting Officer: A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

Contracting Officer's Representative (COR): An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

Defective Service: A service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable: Anything that can be physically delivered, but may include non- manufactured things such as meeting minutes or reports.

Key Personnel: Contractor personnel that are required to be used in the performance of a contract by the Key Personnel listed in the PWS.

Physical Security: Actions that prevent the loss or damage of Government property.

Quality Assurance: The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

Quality Control: All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Subcontractor: One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

Work Day: The number of hours per day the Contractor provides services in accordance with the contract.

4.2 Acronyms: The following are common acronyms used in contract documents and/or Government meetings:

CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DOD	Department of Defense
FAR	Federal Acquisition Regulation
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QAR	Quality Assurance Representative
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program

Requirements
Acquisition Support Services

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See clause 252.232-7006 for instructions. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES Stanley G. Sanders Jr., Contracting Officer Email: Stanley.Sanders@usmc.mil Telephone: 904-696-4812
0002	Inspection and Acceptance Location Both Destination Instructions: See clause 252.232-7006 for instructions. DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES Stanley G. Sanders Jr., Contracting Officer Email: Stanley.Sanders@usmc.mil Telephone: 904-696-4812

Continuation of Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 24 Feb 2026 To 23 Feb 2027	12 Months	Place of Performance DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES Stanley G. Sanders Jr., Contracting Officer Email: Stanley.Sanders@usmc.mil Telephone: 904-696-4812
0002	Period of Performance From 24 Feb 2026 To 23 Feb 2027	1 Lot	Place of Performance DoDAAC: M38450 CountryCode: USA COMMANDING OFFICER BLOUNT ISLAND COMMAND(ORGANIC), 5880 CHANNEL VIEW BLDG 100 JACKSONVILLE, FL 32226-3404 UNITED STATES Stanley G. Sanders Jr., Contracting Officer Email: Stanley.Sanders@usmc.mil Telephone: 904-696-4812

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.224-3	Privacy Training.	Jan 2017		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation. (Jan 2025)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)

(a) *Definitions*. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☑ is, ☐ is not a small business concern under 541611NAICS Code assigned to M6700426Q1000contract number.

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause*.] The Contractor represents that it ☐ is, ☑ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it ☑ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☑ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☑ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(6) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it ☐ is, ☑ is not a veteran-owned small business concern.

(7) [*Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.*] The Contractor represents that it ☐ is, ☑ is not a service-disabled veteran-owned small business concern.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program*. The Contractor represents that it ☐ is, ☑ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that-

(i) It ☐ is, ☑ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☑ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	*Data to be entered in WAWF*
Pay Official DoDAAC	HQ0871
Issue By DoDAAC	M67004
Admin DoDAAC	M67004
Inspect By DoDAAC	M38450 Extension CSMO
Ship To Code	M38450 Extension CSMO
Ship From Code	95NY0

Mark For Code	Not Applicable
Service Approver (DoDAAC)	Not Applicable
Service Acceptor (DoDAAC)	M38450 Extension CSMO
Accept at Other DoDAAC	Not Applicable
LPO DoDAAC	Not Applicable
DCAA Auditor DoDAAC	Not Applicable
Other DoDAAC(s)	Not Applicable

*(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Stanley.Sanders@usmc.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services. (Oct 2025)

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[*Contracting Officer check as appropriate*.]

☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☑ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☐ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☑ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☐ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☐ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

☑ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

☑ (34)

(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☑ (35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☑ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☐ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☑ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☑ (39)

(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☑ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☐ (47)

(i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)

(i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (JAN 2025) of 52.225-3.

☐ (iv) Alternate III (FEB 2024) of 52.225-3.

☐ (v) Alternate IV (Oct 2022) of 52.225-3.

☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☑ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

☐ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☑ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[*Contracting Officer check as appropriate.*]

☐ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter67).

☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S. C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☐ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☑ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.222-3	Convict Labor.	Jun 2003		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.245-9	Use and Charges.	Apr 2012		
52.245-1	Government Property.	Sep 2021		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.245-7003	Contractor Property Management System Administration	Jan 2025		

List of Contract Documents, Exhibits, or Attachments

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT
(NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*.
(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☑ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☑ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*
(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

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252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☑ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Evaluation - Commercial Products and Commercial Services

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.201-1	Acquisition 360: Voluntary Survey.	Sep 2023		
52.204-7	System for Award Management.	Nov 2024		
52.222-50	Combating Trafficking in Persons.	Oct 2025		
52.223-23	Sustainable Products and Services.	May 2024		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		

FAR Clauses Incorporated by Full Text

52.204-26 Covered Telecommunications Equipment or Services-Representation. (Oct 2020)

COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)
(1) *Representation.* The Offeror represents that it ☐ does, ☑ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☑ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☑ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)